



Appeal Decision

Site visit made on 25 August 2026

by K Mee BA(Hons) MA MRTPI

an Inspector appointed by the Secretary of State

Decision date: 21st September 2026

Appeal Ref: 6010471

Land south of Coppice Road, Poynton, Cheshire SK12 1SP

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant permission in principle.
 - The appeal is made by Adobe Property Developments Ltd against the decision of Cheshire East Council.
 - The application Ref is 25/4766/PIP.
 - The development proposed is described as: proposed development comprising up to 7 residential dwellings and associated works.
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Decision

1. The appeal is allowed and permission in principle is granted for a minimum of 1 and a maximum of 7 residential dwellings and associated works at land south of Coppice Road, Poynton SK12 1SP in accordance with the terms of the application, Ref 25/4766/PIP, dated 16 December 2025.

Preliminary Matters

2. The proposal is for permission in principle. Planning Practice Guidance (PPG) advises that this is an alternative way of obtaining planning permission for housing-led development. The permission in principle route has 2 stages: the first stage (or permission in principle stage) establishes whether a site is suitable in-principle and the second (“technical details consent”) stage is when the detailed development proposals are assessed. This appeal relates to the first of these 2 stages.
3. The scope of the considerations for permission in principle is limited to location, land use and the amount of development. All other matters are considered as part of a subsequent Technical Details Consent application if permission in principle is granted.
4. An applicant can apply for permission in principle for a range of dwellings by expressing a minimum and maximum net number of dwellings as part of the application. In this instance, permission in principle has been sought for up to 7 dwellings.
5. The Government published a revised National Planning Policy Framework (the Framework) on 17 August 2026. The main parties were provided with an opportunity to comment. I have had regard to the 2026 version of the Framework in my decision. References hereafter are to the August 2026 version.

Main Issue

6. Given the above, the main issue is whether the site is suitable having regard to its location, proposed land use and the amount of development, in relation to:
- whether the proposal would constitute inappropriate development in the Green Belt, having regard to the Framework and any relevant development plan policies, and the effect on openness; and
 - whether any harm by reason of inappropriateness, and any other harm, would be clearly outweighed by other considerations, so as to amount to very special circumstances required to justify the proposal.

Reasons

7. The appeal site comprises a greenfield parcel of land fronting Coppice Road. Opposite is a continuous linear frontage of dwellings linking the town of Poynton with the village of Higher Poynton. The site adjoins a converted barn to the east and a track to the west providing access to the former Poynton Fruit Farm. Open fields extend to the south, beyond which lies a small area of woodland. The main parties agree that the site lies within the Green Belt and the open countryside.
8. The Framework attaches great importance to Green Belts and states that the fundamental aim of Green Belt policy is to prevent urban sprawl by keeping land permanently open. The Framework outlines that development in the Green Belt will be inappropriate unless it meets a number of exceptions, which include, in part, whether a development would utilise 'grey belt' land.
9. The reason for refusal identifies conflict with Policy PG 3 of the Cheshire East Local Plan Strategy 2010-2030 (July 2017) (CELPs) but the Council otherwise acknowledge that this policy is inconsistent with the Framework as it does not include grey belt within the list of exceptions. Consequently, and being mindful that weight should be afforded to development plan policies on the basis of their degree of consistency with the Framework, I have afforded greater weight to the Framework in relation to this main issue.
10. Policy GB7(g) of the Framework advises that the development of homes in the Green Belt should not be regarded as inappropriate where 4 criteria are met, including (i) where it would utilise grey belt land and would not fundamentally undermine the purposes (taken together) of the remaining Green Belt across the plan area, (ii) where there is an evidenced unmet need, (iii) where the development would be in a sustainable location with particular reference to Policy TR3 of the Framework, and (iv) where applicable the 'Golden Rules' within Policy GB8 are met.
11. With regard to criterion (i), the main parties dispute whether the appeal site comprises grey belt land. The Framework defines grey belt land as land that does not strongly contribute to any of purposes (a), (b), or (d) in Policy GB2. These are: (a) to check the unrestricted sprawl of large built-up areas, (b) prevent neighbouring towns merging into one another, and (d) preserve the setting and special character of historic towns.
12. The main parties agree that the appeal site does not strongly contribute to Green Belt purposes (b) or (d), and I have no reason to reach a different conclusion. The dispute therefore centres on purpose (a). The Council also contend that the appeal

- site conflicts with purpose (c). However, the definition of grey belt makes clear that purpose (c) is not relevant to the assessment of whether land constitutes grey belt.
13. Policy GB2(a) seeks to prevent the unrestricted sprawl of large built-up areas. The appeal site lies close to the edge of Higher Poynton village, whilst I am informed that Poynton is approximately 500 metres away. In assessing a site's contribution to this purpose, the PPG makes clear that villages such as Higher Poynton should not be regarded as large built-up areas. On the basis of the distance and sparse and discontinuous nature of development along the southern side of Coppice Road between the site and Poynton, the site cannot reasonably be regarded as being adjacent to, or near to, a large built-up area.
 14. Whilst the appeal site is undeveloped and only partially contained by enduring physical features, the existing ribbon development along Coppice Road and the dwellings immediately to the east mean that its development would not result in an incongruous pattern of development. I therefore find that the appeal site does not strongly contribute to checking unrestricted sprawl and accordingly satisfies criterion (i) of Framework Policy GB7(g).
 15. I note that the appeal site forms part of parcel PY21 within the Green Belt Assessment Update (2015) which is identified overall as making a 'major contribution' to the five Green Belt purposes. However, the assessment of Green Belt purposes should focus on the land subject to the proposal and its specific role, rather than the wider parcel within which it sits. This does not therefore alter my finding above.
 16. Turning to criterion (ii) of Framework Policy GB7(g), there is no dispute between the parties that the Council cannot demonstrate a 5-year supply of deliverable housing land. Consequently, there is an evidenced unmet need for housing in the area, and the proposal would comply with this requirement.
 17. Criterion (iii) of GB7(g) requires consideration of whether the development is in a sustainable location, with particular regard to Policy TR3 of the Framework. Policies SD 1 and SD 2 of the CELPS seek to ensure that development is accessible by public transport, walking and cycling, and has access to a range of services and facilities. Table 9.1 within Policy SD 2 sets recommended accessibility thresholds. Development is considered to be accessible where it lies within the recommended distances of a bus stop, multi-functional open space, convenience store and at least four other services or amenities. These distances include 500m to a bus stop, post box and convenience store, 1km to a primary school, leisure facility, local meeting place/community centre and public house, and 2km to a railway station.
 18. With the exception of a convenience store, the appeal site meets the accessibility thresholds set out in Table 9.1, being within the recommended distances of a bus stop, post box, public open spaces and at least four other services and amenities. The site is also connected to Poynton, which provides a wide range of services and amenities, by a continuous lit footway along a road subject to a 30mph speed limit. Whilst the nearest shops are just over one mile away and the route includes a modest incline; it nevertheless provides a safe and attractive opportunity for walking and cycling.
 19. Furthermore, nearby bus stops are served by regular daytime and early evening services, albeit with a reduced service on Sundays. These provide direct

connections to Poynton and nearby settlements, making access to day-to-day facilities by public transport a realistic alternative to private car use. From my site observations, the services also connect with Poynton railway station and Stockport bus station, offering onward access to a wider range of destinations. Taken together, these factors demonstrate that future occupiers would have genuine and convenient transport choices beyond reliance on the private car.

20. In combination, the availability of these sustainable transport choices, and the resulting accessibility to services and facilities, indicate that the site occupies a sustainable location. This is further demonstrated by the use of the Connectivity Tool as recommended within Policy TR3(2) of the Framework. I am informed that the resulting overall score is 52 which, for a rural town and fringe location, is above average. On this basis, the proposal would therefore accord with Policy GB7(g)(iii) and be in a sustainable location.
21. Criterion (iv) requires the application of the 'Golden Rules', however, these only apply to major development and are therefore not pertinent to this appeal proposal.
22. Therefore, all criteria within Policy GB7(g) would be met and as such the proposal would not be inappropriate development in the Green Belt. Accordingly, I conclude that the site would be suitable for residential development, with particular regard to whether it would be inappropriate development in the Green Belt. It would comply with Policies SD 1 and SD 2 of the CELPS, which together require residential development to provide access to public transport, services and facilities. It would also comply with CELPS Policy PG 3, which permits development which is not inappropriate in the Green Belt.
23. As I have found that the proposal would not be inappropriate development in the Green Belt, there is no place for a subsequent assessment of the effect of the development on the openness of the Green Belt. Additionally, there is no need for me to assess other considerations, and whether very special circumstances exist in order to justify the development.

Other Matters

24. Concern has been raised regarding the effect of Green Belt development east of Poynton on the perceived bridging function between the wider south Manchester conurbation and the Peak District National Park, including the designated heritage assets of Lyme Park and Peak Forest Canal Conservation Area. Mindful of the statutory duties set out in s66(1) and s72(1) of the Planning (Listed Buildings and Conservation Areas) Act 1990, I have had special regard to the desirability of preserving the setting of the listed building and preserving or enhancing the character or appearance of the conservation area. Nevertheless, given the substantial distance between the appeal site and these heritage assets, together with the extent of intervening development, I find that the proposal would preserve both the setting of the listed building and the character or appearance of the conservation area.
25. Although concerns have been raised about the loss of agricultural land and its potential for food production, the appeal site comprises a relatively small parcel of approximately 0.33ha located at the northern edge of a much larger field, the remainder of which would continue in agricultural use. Consequently, the proposal

- would not materially affect the overall agricultural function or productivity of the land, and this matter does not lead me to an alternative conclusion.
26. Whilst the appeal site does not comprise brownfield land, this does not, of itself, render the proposal unacceptable. As set out above, the development accords with the Framework's policies relating to the Green Belt.
 27. Given the relatively modest scale of the development, for up to 7 dwellings, there is no requirement for the provision of affordable housing.
 28. My attention has been drawn to Policy HOU 1 of the Poynton-with-Worth Neighbourhood Plan 2016-2030 (September 2019) that relates to development within the village of Higher Poynton. The proposed development is located away from the village boundary, such that it would not conflict with that policy.
 29. Interested parties have raised concerns regarding the impact on the character and pattern of development in the area, layout and non-linear back-land form of development being inconsistent with the existing linear grain, flooding and surface water drainage, ground stability, highway safety and increased traffic, parking, trees, wildlife, biodiversity, overloading of utilities and general noise nuisance from the temporary construction activities particularly for vulnerable neighbouring occupiers. These matters are for consideration at a technical details consent stage and therefore do not form part of the considerations relating to this permission in principle.
 30. Concern has been expressed over the density being suburban like, however, based on the context and size of the appeal site, I find that the principle of the amount of development, of up to 7 dwellings, would not be out of character with the low-density ribbon development along Coppice Road.
 31. I note the concerns raised that allowing this appeal could set an undesirable precedent. Whilst I recognise that consistency in the planning process is important and like cases should be decided in a like manner, it is also important to reiterate that each case is determined on its own merits and on the basis of the evidence. As such, I am satisfied that my decision on this proposal, on this particular site and in this context would not harm the ability of the Council to exercise in equity their judgement on matters of inappropriate development, as I have done in this case, in future cases.
 32. The PPG makes clear that planning is concerned with land use in the public interest. Consequently, the protection of purely private interests, including the retention of a particular view from neighbouring properties, is not a material consideration.
 33. There is little substantive evidence before me to demonstrate that local schools, doctors and dentists are at full capacity or that these local services would be materially impacted by the proposal for up to 7 dwellings.
 34. I note reference to other appeals, including at Waterloo Road and The Cherries, however few details have been provided to me and so I cannot be certain of their relevance. In addition, I am required to assess each appeal on its own merits.

Planning Balance and Conclusion

35. The appeal site lies outside any settlement boundary, and the parties agree that it is located within the open countryside for the purposes of the development plan. I have had regard to concerns raised by interested parties regarding conflict with Policy PG 6 of the CELPS, which restricts development in the open countryside to specified exceptions. The proposal does not fall within any of those exceptions. However, the Council confirms that Policy PG 6 is out of date and that its objection relates instead to the proposal constituting inappropriate development in the Green Belt under the Framework. Moreover, in accordance with Annex B of the Framework, development plan policies that are materially inconsistent with the Framework should be afforded very limited weight.
36. As set out above, I have found that the proposal would not constitute inappropriate development in the Green Belt. In these circumstances, Policy S5(5) of the Framework indicates that, through the application of Policy GB7, proposals should be approved unless the benefits of doing so would be substantially outweighed by any adverse effects when assessed against the national decision-making policies in the Framework and applying paragraph S5(2).
37. For the reasons given above, and having regard to all matters raised, I conclude that the benefits of approving the proposal are not outweighed by any adverse effects. The site is therefore suitable for residential development having regard to its location, proposed land use and amount of development. Accordingly, the appeal should be allowed. It is not possible for conditions to be attached to a grant of permission in principle.

K Mee

INSPECTOR